

**UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK**

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LEROY GORDON,

Plaintiff,

-against-

THE CITY OF NEW YORK, a municipal entity;
New York City Police Officers JEAN SEDER,
(Shield #17886), and KEVIN PERALTA (Shield
#6980); Sergeant GARY CALHOUN (Shield #622);
and “JOHN and/or JANE DOES” Nos. 1, 2, 3, etc.
(whose identity are unknown but who are known to
be personnel of the New York City Police
Department), all of whom are sued individually and
in their official capacities.

Defendants.
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**FIRST AMENDED
COMPLAINT**

JURY TRIAL

14 CV 7374 (WFK)(SMG)

Plaintiff LEROY GORDON, by his attorneys, Beldock Levine & Hoffman LLP, as and
for his complaint against the defendants named above alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of rights guaranteed to the plaintiff by the United States Constitution, including its Fourth and Fourteenth Amendments, and for violations of the laws and Constitution of the State of New York, by defendants THE CITY OF NEW YORK (“CITY”), and New York City Police Officers JEAN SEDER, (“SEDER”), shield #17886, KEVIN PERALTA (“PERALTA”), shield #6980, Sergeant GARY CALHOUN (“CALHOUN”), Shield #622, and “JOHN and/or JANE DOES” Nos. 1, 2, 3, etc. (“DOES”).

2. Plaintiff seeks redress for substantial injuries he suffered when he was unlawfully detained, assaulted and battered, frisked, and falsely arrested. The defendant officers approached

plaintiff without any suspicion of illegal activity while he was walking along New Jersey Avenue in Brooklyn, New York, and asked to talk to him. When plaintiff continued walking without responding, the defendant police officers violently assaulted and battered plaintiff and then frisked and searched him. Although the defendant police officers did not discover any contraband on plaintiff as a result of their illegal search, they falsely charged plaintiff with criminal possession of a controlled substance and other offenses.

3. Plaintiff seeks compensatory damages for loss of liberty, physical injury, psychological and emotional distress, and other injuries caused by the illegal actions of the defendants; punitive damages to deter such intentional or reckless deviations from well-settled constitutional law; and such other and further relief, including costs and attorneys' fees, as this Court deems equitable and just.

JURISDICTION

4. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343(a)(3) and (a)(4), as this action seeks redress for the violation of plaintiff's constitutional and civil rights.

5. Supplemental jurisdiction is conferred upon this Court by 28 U.S.C. § 1367(a) over any and all state law claims that are so related to the federal claims within the original jurisdiction of this Court that they form part of the same case or controversy.

VENUE

6. This Court is the proper venue pursuant to 28 U.S.C. § 1391(b)(2), as this is the judicial district in which the events giving rise to plaintiff's claims took place.

JURY DEMAND

7. Plaintiff demands a trial by jury in this action on each and every one of his claims for which jury trial is legally available.

THE PARTIES

8. Plaintiff LEROY GORDON (“plaintiff”), a citizen of the United States, is and was at all times relevant to this complaint a resident of Kings County, City and State of New York.

9. Defendant CITY is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department and does maintain the New York City Police Department (“NYPD”) which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The CITY assumes the risks incidental to the maintenance of a police force and the employment of police officers.

10. At all times relevant herein, defendants SEDER, PERALTA, CALHOUN, and DOES were NYPD Police Officers. Upon information and belief, defendants SEDER, PERALTA, CALHOUN, and DOES are still NYPD Police Officers.

11. At all times relevant herein, SEDER, PERALTA, CALHOUN, and DOES acted under color of state law in the course and scope of their duties and/or functions as agents, employees, and/or officers of the CITY and/or the NYPD, and incidental to the lawful pursuit of their duties as agents, employees, and/or officers of the CITY and/or the NYPD.

12. At all times relevant herein, SEDER, PERALTA, CALHOUN, and DOES violated clearly established rights and standards under the Fourth and Fourteenth Amendments to the United States Constitution and under equivalent New York State constitutional provisions, of which reasonable police officers in their circumstances would have known.

COMPLIANCE WITH NEW YORK GENERAL MUNICIPAL LAW

13. Plaintiff personally served a Notice of Claim upon the CITY on August 14, 2014, within ninety days of the events giving rise to his claim. Plaintiff appeared and was questioned at an administration hearing pursuant to New York General Municipal Law §50-h on November 21, 2014. The CITY and the New York City Comptroller have neglected and refused to adjust or pay plaintiff's claims.

14. This action is filed within one year of the events giving rise to plaintiff's claims.

STATEMENT OF FACTS

15. Plaintiff was born and raised in Brooklyn, New York. He is a forty-seven year old African-American.

16. On or about the afternoon of May 19, 2014, plaintiff left his home to pick up his stepson at the Frederick Douglass Academy VIII Middle School in Spring Creek (formerly known as Starrett City), Brooklyn, New York.

17. Approximately one block from plaintiff's home, while plaintiff was walking along New Jersey Avenue towards New Lots Avenue, plaintiff heard the sounds of a commotion coming from behind him.

18. Plaintiff turned around to see what was causing the commotion and saw a marked police car on New Jersey Avenue with several uniformed police officers in it.

19. A police officer in the police car called out asking if he could speak to plaintiff.

20. Plaintiff did not respond to the police officer and continued walking down New Jersey Avenue towards New Lots Avenue.

21. Plaintiff did not want to talk to the police officer because the police had a reputation for harassing people of color in his neighbourhood.

22. Moments later, plaintiff was accosted by several police officers, including, upon information and belief, defendant police officers SEDER, PERALTA, and DOES.

23. The police officers seized plaintiff's arms and surrounded him.

24. One police officer told plaintiff that he wanted to talk to him; another police officer ordered plaintiff to open his mouth and lift his tongue.

25. Plaintiff did not understand why the police officers were accosting him and asking him to open his mouth and lift his tongue.

26. Plaintiff asked the police officers to take their hands off of him.

27. Plaintiff was then grabbed from behind and placed in a chokehold.

28. The police officers then forced plaintiff to fall forward on his face.

29. After plaintiff had been forced face down on the ground, police officers began searching through his pockets and clothing.

30. The police officers took plaintiff's keys, shopping receipts, and cell phone.

31. The police officers did not find any contraband on plaintiff's person.

32. The police officers then forcibly lifted plaintiff to his feet and placed him in handcuffs.

33. Plaintiff was then taken to a police van where police officers pinned his legs against the side of the van while attempting to force his upper body into the van.

34. Once plaintiff was forced into the van, officers continued to force plaintiff towards the back of the van.

35. When plaintiff's handcuffed arms became caught on one of the van seats, one of the defendant police officers punched plaintiff in the side of his head.

36. Plaintiff was eventually seated in the back of the police van.

37. A female police officer began to ask plaintiff questions, including what his name, address, and/or age was.

38. Plaintiff was not informed of his rights by the police officers either before or after they began questioning him.

39. Plaintiff told the police officer that they were going to have a lawsuit on their hands for what they were doing to him.

40. The police officer responded that plaintiff was going to need a lawyer.

41. The police officer continued to ask plaintiff questions, but plaintiff chose to remain silent.

42. Plaintiff was eventually taken to the 75th Precinct.

43. At the 75th Precinct, plaintiff was placed in a holding cell.

44. While in the holding cell, plaintiff was confronted by several police officers who, without having read plaintiff his rights, began yelling at plaintiff in sum and substance: “What do you have that you’re not supposed to have?” “You know you have something you shouldn’t have...” “Where is it? You must know where something is...”

45. Plaintiff told the police officers that he did not know what they were talking about.

46. One of the police officers raised his fist and threatened to strike plaintiff.

47. Other police officers continued to ask plaintiff questions, but plaintiff chose not to speak to them.

48. Plaintiff was eventually taken to a different holding cell.

49. Before being placed in the holding cell, police officers took the laces out of plaintiff’s shoes and cut the drawstring out of plaintiff’s sweatpants.

50. A male police officer began searching plaintiff.

51. The police officer searching plaintiff lifted up plaintiff's shirt and pulled out his underwear, all of which was done in the presence of a female officer who watched.

52. When the police officer finished searching plaintiff, plaintiff was placed in the holding cell.

53. Plaintiff asked the police officers if he could speak with a certain police officer at the precinct with whom he had previously dealt concerning a personal matter and who he thought he could trust.

54. Plaintiff was told that the police officer he was requesting to see was not available.

55. Approximately five minutes later, plaintiff was approached by a female in plain clothes who asked if plaintiff would talk to her.

56. Plaintiff thought the female was a police administrative assistant.

57. Plaintiff asked the female why the police had arrested him.

58. The female told plaintiff that his arrest was narcotics related.

59. Plaintiff told the female that he did not want to talk to the police because he did not trust them.

60. The female told plaintiff that not talking to the police would result in his being held much longer than if he did speak to them.

61. Plaintiff told the female that his name was "Leroy Gordon" and gave her his address.

62. As plaintiff gave the female this information, he noticed that the female police officer who had earlier asked him questions when he was put in the police van was standing in the background and appeared to be listening to their conversation and writing in a notebook.

63. At approximately 12:00 a.m., May 20, 2014, plaintiff was removed from the 75th Precinct and transported to Brooklyn Central Booking.

64. At Brooklyn Central Booking, plaintiff was again patted down and searched.

65. Plaintiff was confined to Brooklyn Central Booking for approximately sixteen hours before being brought before a judge for arraignment.

66. At arraignment, plaintiff was charged with Attempted Tampering with Physical Evidence (NYPL 110 and 215.40(2)).

67. The charge was based on information allegedly provided to defendant police officer SEDER by defendant police officer PERALTA that plaintiff had exchanged a sum of currency for what appeared to be twist bag of crack cocaine, and that when plaintiff was approached by police officers, he put the purported twist bag of crack cocaine in his mouth, chewed it, and spit it out.

68. Defendant police officer PERALTA further reported that the individual who allegedly gave plaintiff the twist bag of cocaine for currency was not apprehended and the twist bag of crack cocaine plaintiff allegedly chewed up and spit out was not recovered.

69. Plaintiff was additionally charged at his arraignment with Resisting Arrest (NYPL 205.30).

70. That charge against plaintiff was also based on information allegedly provided to defendant police officer SEDER by defendant police officer PERALTA in that plaintiff had

“RESISTED LAWFUL ARREST BY FLAILING [HIS] ARMS, REFUSING TO BE HANDCUFFED AND STRUGGLING WITH INFORMANT.”

71. Plaintiff was additionally charged at his arraignment with False Personation (NYPL 190.23).

72. That charge against plaintiff was also based on information allegedly provided by defendant police officer SEDER that after he warned plaintiff that he would be charged with a misdemeanor if he lied about his name, plaintiff told him his name was CHAASHABYA YASHARAHLA, but then admitted that his name was LEROY GORDON.

73. CHAASHABYA YASHARAHLA is plaintiff’s religious name, which plaintiff has not used since the nineteen-nineties.

74. Plaintiff never provided defendant police officer PERALTA with either his religious or his personal and family name, LEROY GORDON.

75. Upon information and belief, the charges against plaintiff were maliciously lodged by the individual defendants, were without probable cause, and were lacking in any legal justification.

76. Upon information and belief, Sergeant CALHOUN ratified the baseless charges against plaintiff by entering those charges into an NYPD arrest report and signing off on them as the approving supervisor.

77. Plaintiff pled “not Guilty” at arraignment.

78. Plaintiff was released on his own recognizance in the afternoon of May 20, 2014, after having spent over twenty-four (24) hours in custody.

79. Plaintiff was compelled to return to Kings County Criminal Court on July 8, 2014, at which time plaintiff accepted an adjournment in contemplation of dismissal and all charges against plaintiff were dismissed.

80. Plaintiff was not engaged in any activities that were in violation of any law during the events described above and defendants had neither reasonable suspicion to stop plaintiff nor probable cause to arrest him.

81. At all times relevant herein, the individual defendant police officers were engaged in a joint venture. The individual police officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during the said events.

82. Defendants' conduct caused plaintiff to suffer loss of liberty, emotional and psychological pain, embarrassment, humiliation, harm to his reputation, and deprived him of his constitutional rights.

FIRST CAUSE OF ACTION

42 U.S.C. § 1983 – Violations of Fourth and Fourteenth Amendment Rights

83. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

84. In committing the acts and omissions complained of herein, defendants acted under color of state law to deprive plaintiff of certain constitutionally protected rights under the Fourth and Fourteenth Amendments to the United States Constitution, including, but not limited to:

- a. the right to be free from unreasonable search and seizure of his person;
- b. the right to be free from arrest without probable cause;

- c. the right to be free from false imprisonment, that being wrongful detention without good faith, reasonable suspicion, or legal justification, and of which detention plaintiff was aware and to which he did not consent;
- d. the right to be free from the lodging of false criminal charges against him by police officers;
- e. the right to be free from abuse of process;
- f. the right to be free from deprivation of liberty without due process of law; and
- g. the right to equal protection, privileges, and immunities under the laws.

85. As a direct and proximate result of defendant NYPD police officers SEDER's, PERALTA's, CALHOUN's, and DOES' deprivation of plaintiff's constitutional rights, plaintiff suffered the injuries and damages set forth above.

86. The unlawful conduct of defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

SECOND CAUSE OF ACTION
Respondeat Superior

87. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

88. At all relevant times, defendant NYPD police officers SEDER, PERALTA, CALHOUN, and DOES were employees of the City and were acting within the scope of their employment.

89. The City is therefore vicariously liable under the doctrine of *respondeat superior* for the actions of defendant NYPD police officers SEDER, PERALTA, CALHOUN, and DOES set forth herein.

THIRD CAUSE OF ACTION

Violations of the New York State Constitution

90. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

91. Defendants subjected plaintiff to the foregoing acts and omissions without due process of law, thereby depriving plaintiff of rights, privileges, and immunities guaranteed by Article 1, §§ 1, 6, and 12 of the New York State Constitution, including, without limitation, the following:

- a. Plaintiff was deprived of his rights and privileges guaranteed by Article 1, § 1 of the New York State Constitution;
- b. Plaintiff was deprived of his right to due process guaranteed by Article 1, § 6 of the New York State Constitution; and
- c. Plaintiff was deprived of his right to equal protection under the law and was subjected to discrimination based on his race, in violation of Article 1, § 11 of the New York State Constitution.
- d. Plaintiff was deprived of his right to be free from unreasonable searches and seizures guaranteed by Article 1, § 12 of the New York State Constitution.

92. As a direct and proximate result of defendant NYPD police officers SEDER's, PERALTA's, CALHOUN's, and DOES' deprivations of plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, plaintiff suffered the injuries and damages set forth above.

93. The unlawful conduct of defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

FOURTH CAUSE OF ACTION **Assault and Battery**

94. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

95. Defendant NYPD police officers SEDER, PERALTA, CALHOUN, and DOES, without just cause, willfully and maliciously used physical force against plaintiff causing his injuries.

96. Defendant NYPD police officers SEDER, PERALTA, CALHOUN, and DOES committed the foregoing acts intentionally, willfully, and with malicious disregard for plaintiff's rights, and are therefore liable for punitive damages.

FIFTH CAUSE OF ACTION
False Imprisonment

97. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

98. Defendant NYPD police officers SEDER, PERALTA, CALHOUN, and DOES, through the foregoing acts, caused plaintiff to be wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which detention plaintiff was aware and to which he did not consent.

99. Defendant NYPD police officers SEDER, PERALTA, CALHOUN, and DOES committed the foregoing acts intentionally, willfully, and with malicious disregard for plaintiff's rights and are therefore liable for punitive damages.

SIXTH CAUSE OF ACTION
Intentional Infliction of Emotional Distress

100. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

101. Defendant NYPD police officers SEDER, PERALTA, CALHOUN, and DOES, through the foregoing acts, did commit extreme and outrageous conduct and thereby

intentionally, and/or recklessly caused plaintiff to experience severe mental and emotional distress, pain, suffering, and damage to name and reputation.

102. Defendant NYPD police officers SEDER, PERALTA, CALHOUN, and DOES committed the foregoing acts intentionally, willfully, and with malicious disregard for plaintiff's rights and are therefore liable for punitive damages.

SEVENTH CAUSE OF ACTION
Negligence

103. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

104. Defendant NYPD police officers SEDER, PERALTA, CALHOUN, and DOES owed plaintiff a duty of care, including the duty to exercise due care in the course of their duties as NYPD officers and the duty to protect citizens from the intentional misconduct of other NYPD officers.

105. Defendant NYPD police officers SEDER, PERALTA, CALHOUN, and DOES, by the foregoing acts, negligently failed to use due care in the performance of their duties in that they failed to perform their duties with the degree of care that a reasonably prudent and careful officer would have used under similar circumstances.

106. All of these acts were performed without any negligence on the part of plaintiff and were the proximate cause of injuries to plaintiff.

EIGHTH CAUSE OF ACTION
Negligent Infliction of Emotional Distress

107. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

108. As police officers acting in the performance of their duties, defendant NYPD police officers SEDER, PERALTA, CALHOUN, and DOES owed plaintiff a duty of care.

109. In breach of that duty, defendant NYPD police officers SEDER's, PERALTA's, CALHOUN's, and DOES' foregoing conduct endangered plaintiff's safety and caused him to fear for his safety.

110. As a result, plaintiff suffered emotional distress.

DEMAND FOR RELIEF

WHEREFORE, plaintiff demands the following relief against the defendants, jointly and severally:

- (a) compensatory damages in an amount just and reasonable and in conformity with the evidence at trial;
- (b) punitive damages from defendant NYPD police officers SEDER, PERALTA, CALHOUN, and DOES to the extent allowable by law;
- (c) attorney's fees;
- (d) the costs and disbursements of this action;
- (e) interest; and
- (f) such other and further relief as this Court deems just and proper.

Dated: New York, New York
April 24, 2015

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/s/
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